

26CHCV01345 26CHCV01345

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PLAINTIFFS' MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

Motion filed on July 7, 2026.

MOVING PARTY: Plaintiffs Judith M. Brown-Williams and Alvin
E. Williams

RESPONDING PARTY: Defendant State Farm General Insurance
Company

NOTICE: OK.

RELIEF REQUESTED: Plaintiffs seek further responses and
production in response to Requests for Production of Documents, Set One.

RULING: Denied.

BACKGROUND

On March 27, 2026, Plaintiffs Judith M. Brown-Williams and
Alvin E. Williams (Plaintiffs) filed the Complaint against Defendant State Farm

General Insurance Company (State Farm), alleging breach of contract and breach of the implied covenant of good faith and fair dealing.

State Farm filed an Answer on May 6, 2026 and served verified responses to Plaintiffs' Requests for Production of Documents, Set One, on June 9, 2026. The responses were verified by a State Farm Team Manager.

Plaintiffs filed the Motion on July 7, 2026. State Farm filed an Opposition and responsive separate statement on July 28, 2026. Plaintiffs filed a Reply on August 4, 2026.

On August 10, 2026, the Court continued the Motion to September 22, 2026 and ordered the parties to meet and confer concerning the proposed protective order and any remaining issues. The parties filed a Joint Status Report on September 15, 2026.

DISCUSSION

A party may move to compel a further response where a statement of compliance is incomplete, a representation of inability to comply is inadequate or incomplete, or an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The moving party must also show good cause for the discovery sought. (Code Civ. Proc., § 2031.310, subd. (b)(1).)

Following the Court-ordered meet and confer, the Joint Status Report identifies one remaining discovery request in dispute. Request for Production No. 4 seeks: "ALL ADJUSTER NOTES, LOGS, LOGS, DIARIES, OR REPORTS CONCERNING THE CLAIM." (Jt. Status Rpt. at p. 5.)

State Farm's verified response to Request for Production No. 4 states:

"State Farm does not maintain a physical file folder with respect to most claims. Information regarding this claim is created, stored, managed and accessed primarily in and through the Enterprise Claims System ('ECS'), a proprietary web-based system used by State Farm claims associates. 'Claim File' has a distinct meaning to State Farm based upon the portion of its Operation Guide that provides instructions on what to retrieve from ECS to generate a Claim File for production outside the ECS environment. State Farm will produce its Claim File (SF.Brown-Williams_J 000001-005684) as it does in

the usual course of business pursuant to its Operation Guide 825-100. State Farm objects that the request seeks information protected by the attorney client privilege and/or attorney work product doctrine and is withholding portions of its Claim File that contain information protected by the attorney client privilege and/or is work product. State Farm will also produce the policy in effect at the time of the subject claim.

“To the extent that this request seeks production of information other than the ‘Claim File’ as described above, State Farm objects to this request as overbroad, vague, ambiguous, burdensome, and as seeking information that is neither relevant nor reasonably calculated to lead to the discovery of admissible evidence. Further, the documents sought may also violate the attorney-client privilege and work product doctrine.”

Plaintiffs contend State Farm's response does not establish that every responsive adjuster note, log, diary, and report has been produced because State Farm defines the Claim File by reference to its internal Operation Guide. (Jt. Status Rpt. at p. 5.) Plaintiffs seek confirmation that all responsive materials have been produced, including materials outside State Farm's internally defined Claim File. (Jt. Status Rpt. at pp. 6-7.)

State Farm states that documents constituting its logs, diaries, and notes were produced at SF.BROWN-WILLIAMS_J000001 through J000692. (Jt. Status Rpt. at p. 7.) State Farm states that “[t]he log notes of State Farm's claims personnel were all produced” at J000031 through J000159. (Jt. Status Rpt. at p. 7.) State Farm identifies additional responsive claims-handler notes at J000387 through J000413. (Jt. Status Rpt. at p. 7.) State Farm further states that reports by claims personnel are contained within the File History portion of the Claim File. (Jt. Status Rpt. at p. 8.)

Plaintiffs acknowledge that, after receiving State Farm's correlation chart, they located most of the documents previously identified as missing and no longer contend those materials were omitted. (Jt. Status Rpt. at p. 5.)

Plaintiffs' Motion seeks the complete electronic claim file and claim activity history, including claim notes, diary entries, audit trails, and related records. (Mot. at pp. 2, 10.) Plaintiffs' Reply additionally questions archived or historical claim data, metadata, audit trails, system history, and other electronically stored information outside the PDF export.

(Reply at pp. 5-6.) Request for Production No. 4, however, seeks adjuster notes, logs, diaries, and reports concerning the claim. (State Farm Resp. to RFP, Set One, No. 4.) The Court does not construe Request for Production No. 4 to encompass the broader categories of electronically stored information identified in the Motion and Reply.

As to the categories actually requested, State Farm has identified where the responsive notes and reports were produced and represents that all claims-personnel log notes were produced. (Jt. Status Rpt. at pp. 7-8.) Plaintiffs identify no remaining deficiency in State Farm's response or production as to those categories. Accordingly, Plaintiffs have not established a basis under section 2031.310 for a further response or further production to Request for Production No. 4.

State Farm further states, as to Request for Production No. 4, that "[t]here are no other responsive, non-privileged documents that can be produced absent a stipulation for a protective order entered by the Court." (State Farm Resp. Separate Statement at p. 14.) In the Joint Status Report, however, State Farm identifies the materials subject to the proposed protective order as portions of its claims-handling guidelines. (Jt. Status Rpt. at pp. 3-4.)

The parties did not agree upon a protective order. (Jt. Status Rpt. at pp. 2-4.) No motion for a protective order is before the Court. The Court therefore does not determine the terms of any protective order.

State Farm served a privilege log on July 9, 2026. (Jt. Status Rpt. at p. 6.) Plaintiffs raise particularized objections to entries in that log in the Joint Status Report. (Jt. Status Rpt. at p. 6.) State Farm states those particular objections were not raised during the parties' court-ordered meet and confer. (Jt. Status Rpt. at p. 8.) The Court does not reach those privilege-log issues here.

CONCLUSION

Plaintiffs' Motion to Compel Further Responses to Requests for Production of Documents, Set One is DENIED.